

CHAPTER 49.

An Act to provide for taking a Census of Production.
[21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Periodical
census.

1. A census of production shall be taken in the year one thousand nine hundred and eight, and subsequently at such intervals as may be determined by an order made by the Board of Trade as soon as practicable after the taking of the first census and laid before Parliament.

Central au-
thority for and
expenses of
census.

2.—(1) The Board of Trade shall superintend the taking of the census, and shall, subject to the provisions of this Act, prepare and issue such forms and instructions as they deem necessary for the taking of the census.

(2) The expenses incurred, with the approval of the Treasury, for the purpose of the census shall be paid out of money provided by Parliament.

Preparing and
filling up of
schedules.

3.—(1) Forms shall be prepared for the purpose of being filled up by the persons specified in the schedule to this Act with such of the following particulars in respect of the calendar year next preceding the date of the census, or any prescribed part of that year, as may be prescribed; that is to say, the nature of the trade or business, and particulars relating to the output, the number of days on which work was carried on, the number of persons employed, and the power used or generated, and relating to such other matters of a like nature, except the amount of wages, as may be found to be necessary for the purpose of enabling the quantity and value of production to be ascertained: Provided that—

(a) If in any case it is found inconvenient to furnish such particulars as respects the calendar year, the Board of Trade may allow the particulars to be furnished as respects some other period of twelve months or prescribed part thereof;

(b) In order to enable the Board of Trade to compile, as far as practicable, statistics of the net value of production without duplication, the prescribed particulars as to output may include particulars as to the aggregate estimated value of the materials used and the total amount paid to contractors for work given out to them; and

(c) Particulars as to the quantity of output shall not be required, except in the case of articles the quantity of which is, on their importation into or exportation

from the United Kingdom, required by the official import or export list to be entered, nor shall such particulars be required in greater detail than in those lists.

(2) It shall be the duty of every person specified in the schedule to this Act, upon receiving notice in writing from the Board of Trade to that effect, to fill up, and sign, and to deliver in such manner as may be prescribed, on or before the prescribed date, such date not to be less than three months after the issue of the forms, the form appropriate to his trade or business.

(3) The Board of Trade shall issue to every person required to make a return under this Act the form to be filled up by him.

4. As soon as practicable after any census is complete the Board of Trade shall present to Parliament a report of their proceedings under this Act, and a summary of the statistics compiled from the returns under this Act, and from such other information as the Board are able to obtain; such summary shall include a separate statement of the statistics obtained in Ireland, and a similar separate statement for Scotland. Report to Parliament.

5.—(1) The Secretary of State may, as respects any factory, workshop, mine, or quarry, issue and collect any of the forms under this Act by arrangement with the Board of Trade, and in such case shall have the same powers and duties for the purpose as are by this Act conferred on the Board of Trade: Provided that the Board of Trade shall not transfer its powers to make rules under section eight. Inter-departmental arrangements.

(2) The Secretary of State may, if he thinks fit, by arrangement with the Board of Trade, cause any statistical returns, which under any other enactment he is authorised to obtain with respect to factories, workshops, mines, or quarries, to be collected at the same time, and, if convenient, on the same forms as returns under this Act.

6.—(1) No individual return, and no part of an individual return, made, and no answer to any question put, for the purposes of this Act shall, without the previous consent in writing of the owner for the time being of the undertaking in relation to which the return or answer was made or given, be published, nor, except for the purposes of a prosecution under this Act, shall any person not engaged in connexion with the census be permitted to see any such individual return or any such part of an individual return, and every person engaged in connexion with the census shall be required to make a declaration in the prescribed form that he will not disclose or, except for the purposes of this Act, make use of the contents of any such individual return or any such part of an individual return, or any such answer as aforesaid, and any person who knowingly acts in contravention of any declaration which he has so made shall be guilty of a misdemeanour and on conviction be liable Prohibition against publishing individual returns.

to imprisonment, with or without hard labour, for a term not exceeding two years, or to a fine, or to both imprisonment and a fine.

(2) It shall be the duty of the Board of Trade, in preparing forms, instructions, or rules under this Act, to have due regard to the circumstances of various trades and industries, and in particular to the importance of avoiding the disclosure in any return of any trade secret or of trading profits, or of any other information the disclosure of which would be likely to tend to the prejudice of the person making the return.

(3) In compiling any report, summary of statistics, or other publication under this Act, the Board of Trade shall not disclose in any manner whatever any of the particulars comprised in any individual return, or arrange them in any way which would enable any person to identify any particulars so published as being particulars relating to any individual person or business.

(4) Where it is shown to the satisfaction of the Board of Trade that any trade or business is carried on by any company in whole or in part by means of any one or more subsidiary companies, any aggregate of two or more returns relating to the trade or business so carried on shall for the purposes of this Act be treated as an individual return.

A company shall be treated as subsidiary to another company for the purposes of this provision if not less than three-fourths of its ordinary share capital is held by that other company.

(5) If any person, having possession of any information which to his knowledge has been disclosed in contravention of the provisions of this section, publishes or communicates to any other person any such information, he shall be guilty of a misdemeanour and shall on conviction be liable to imprisonment, with or without hard labour, for a term not exceeding two years, or to a fine, or to both imprisonment and a fine.

Returns by
local and other
authorities.

7. For the purposes of this Act the exercise and performance by a local or other public authority of the powers and duties of that authority shall be treated as the trade or business of that authority.

Power of Board
of Trade to
make rules.

8. The Board of Trade may, after consultation with the Secretary of State, make rules under this Act—

- (a) for prescribing, either generally or as respects any particular industry or class of industries, anything which, under this Act, is to be prescribed; and
- (b) for exempting from the obligation to make returns under this Act, either wholly or to the prescribed extent, and either unconditionally or subject to the prescribed conditions, any persons or any prescribed class of persons; and
- (c) generally for carrying this Act into effect.

All rules made in pursuance of this Act shall be laid before Parliament.

9.—(1) The Board of Trade shall appoint one or more committees, including persons conversant with the conditions of and engaged in various trades and industries, for the purpose of advising them when considering the preparation of the forms and instructions necessary for the taking of the census and the making of any rules under this Act, and in particular such of those rules as prescribe the details of the particulars relating to output and other matters to be filled in in the several forms.

Power to appoint advisory committees.

(2) There may be paid to the members of any such committee, as part of the expenses incurred for the purpose of the census, such travelling and other allowances as the Board of Trade fix, with the consent of the Treasury.

(3) Committees may be appointed under this section to advise the Board of Trade specially as regards any special forms, instructions, or rules, or generally as regards any class or classes of forms, instructions, or rules which the Board may assign to them.

(4) A member of an advisory committee shall not as such be permitted to see any individual return or any part thereof or to be made acquainted with any information contained in any answer to any question put for the purposes of this Act.

10. If the Secretary of State so directs, the intervals at which returns are to be made under section one hundred and thirty of the Factory and Workshop Act, 1901, may, notwithstanding anything in that section, be the same as the intervals at which a census is directed under this Act to be taken.

Intervals for making returns under 1 Edw. 7. c. 22. s. 130.

11. Nothing in this Act shall be construed as preventing the Board of Trade or the Secretary of State from obtaining such additional statistical or other information as any person may be willing to supply either by the insertion of additional particulars in the forms under this Act, or by the circulation of separate forms in any census or inter-census year: Provided that such particulars, if inserted in forms under this Act, shall be clearly distinguished from the particulars required under this Act to be filled in.

Voluntary information.

12. If any person required to make a return under this Act—

Penalty for offences.

- (a) wilfully refuses or without lawful excuse neglects to fill up a form to the best of his knowledge and belief, or to sign and deliver it as required by this Act; or
- (b) wilfully makes, signs, or delivers, or causes to be made, signed, or delivered, any false return in respect of any matter specified in the form; or
- (c) refuses to answer, or wilfully gives a false answer to, any question necessary for obtaining the information required to be furnished under this Act,

he shall for each offence be liable on conviction under the Summary Jurisdiction Acts to a fine not exceeding ten pounds and in the case of a continuing offence to a further fine not

exceeding five pounds for each day during which the offence continues, and in respect of false returns and answers the offence shall be deemed to continue until a true return or answer has been made or given.

13. This Act may be cited as the Census of Production Act, 1906.

SCHEDULE.

LIST OF PERSONS REQUIRED TO MAKE RETURNS.

(A) The occupier of every factory or workshop within the meaning of the Factory and Workshop Act, 1901.

(B) The owner, agent, or manager of every mine and quarry.

(C) Every builder, that is to say, a person who, by way of trade or business, undertakes the construction or alteration of a building or any part thereof.

(D) Every person who by way of trade or business executes works of construction, alteration, or repair of railroads, tramroads, harbours, docks, canals, sewers, roads, embankments, reservoirs or wells, or of laying or altering gas or water pipes, or telegraphic, telephonic, or electric lines or works, or any other prescribed works.

(E) Every person who by way of trade or business gives out work to be done elsewhere than on his own premises.

(F) Every person carrying on any other trade or business which may be prescribed.

CHAPTER 50.

An Act to establish a Board of Trustees to manage the National Galleries of Scotland; and for other purposes.
[21st December 1906.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the National Galleries of Scotland Act, 1906, and shall apply to Scotland only.

2. In this Act (unless the context otherwise requires)—

"The Board" shall mean the Board of Trustees established by this Act:

"Prescribed" shall mean prescribed by Order under the hand of the Secretary for Scotland; provided that every such Order shall be laid as soon as may be upon the table of both Houses of Parliament: